

**CONFIDENTIAL //
FOR OFFICIAL REVIEW**

CASE FILE: JOHNSON, SARAH (Application for Registration)

A Review of Genealogical Evidence and Statutory
Provisions Pertaining to Application Denial

Case No. 2010-JHN-0114

Sipekne'katik First Nation // Genealogical Lineage: Francis / Johnson

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Notice of Decision: Application for Registration Denied



Government
of Canada

Government
of Canada

Indian Registration System

Date: January 14, 2010

RE: Application for Registration - Sarah Johnson

Dear Mr. and Mrs. Johnson,

We regret to inform you that your daughter, Sarah Johnson, is not eligible for registration under the Indian Act. Our records indicate that her father is registered under Section 6(2). Because her mother is not entitled to be registered, Sarah falls under the "Second Generation Cut-Off" rule.

This file is now closed.

Subject: RE: Application for Registration - Sarah Johnson

Date: January 14, 2010

Key Finding: "We regret to inform you that your daughter, Sarah Johnson, is not eligible for registration under the Indian Act. Our records indicate that her father is registered under Section 6(2). Because her mother is not entitled to be registered, Sarah falls under the 'Second Generation Cut-off' rule."

Disposition: "This file is now closed."

Applicant Profile: JOHNSON, Sarah

Full Name:	Sarah Johnson
Date of Birth:	May 4, 2008
Parents:	David Johnson (Father) Lisa (Miller) Johnson (Mother)
Application History:	2009: Application for registration submitted by parents. 2010: Application DENIED by the Registrar, Indian Registration System.

Registrar's Note:

The applicant's eligibility is wholly dependent on the status inherited from her parents under the Indian Act. The denial is not discretionary but a direct application of Section 6(1)(f).

Governing Legislation: The Indian Act and Status Inheritance

Section 6(1) Status

A person is entitled to be registered under Section 6(1) if, for example, both of their parents are entitled to be registered.

Inheritance Power

A person with 6(1) status can pass Indian Status to their child, regardless of the other parent's status. The child will be registered under 6(1) or 6(2).

Section 6(2) Status

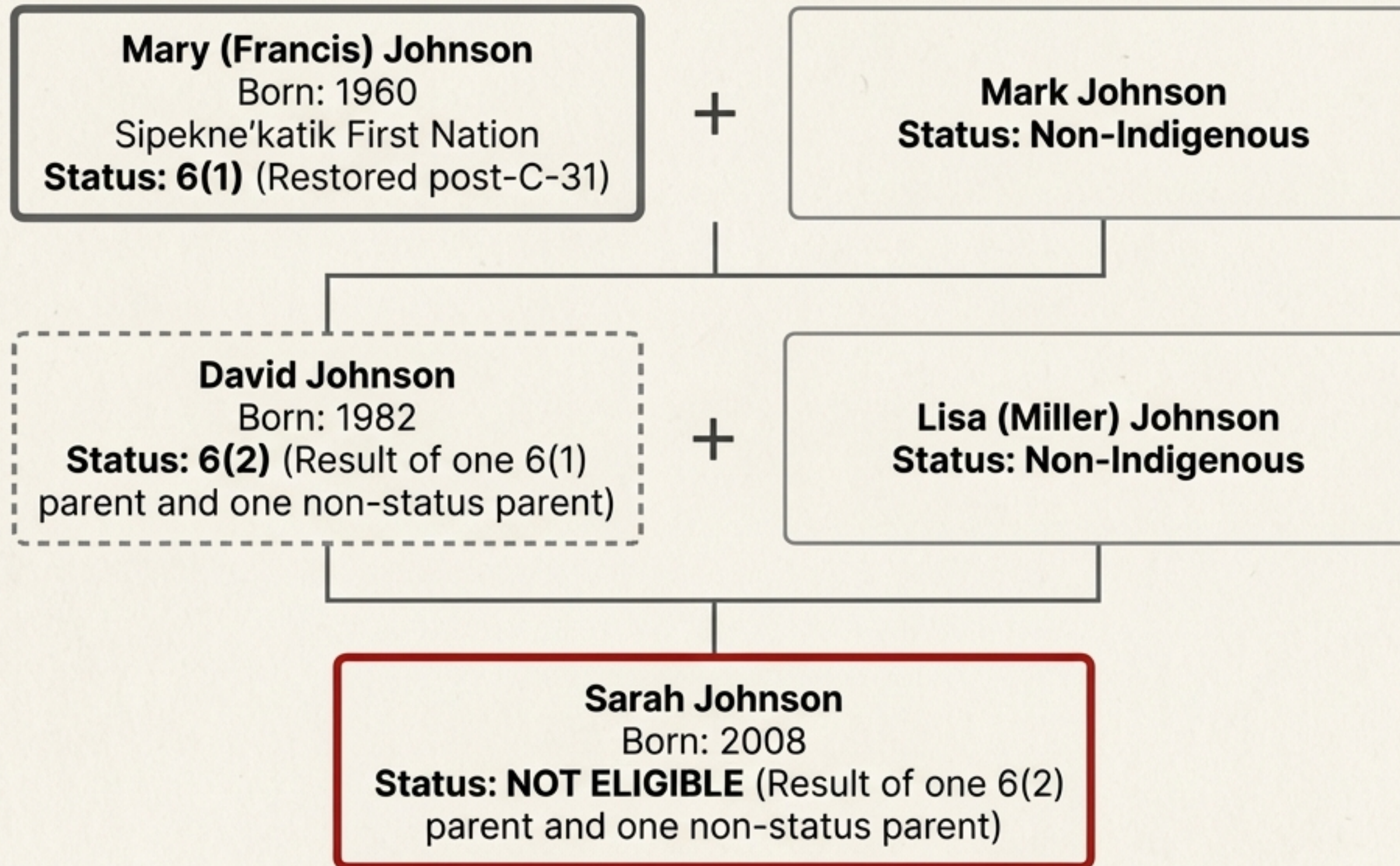
A person is entitled to be registered under Section 6(2) if only one of their parents is entitled to be registered (specifically under 6(1)).

Inheritance Power

A person with 6(2) status can **ONLY** pass Indian Status to their child if the other parent also has status.

The '**Second-Generation Cut-off**': If a person with 6(2) status has a child with a **non-status person**, that child **is not eligible for registration**. Status is "cut off" after two successive generations with a non-status partner.

Genealogical Record: The Johnson Family Lineage and Status Transmission





Mary (Francis) Johnson (Maternal Grandmother)

Profile Section

Name: Mary (Francis) Johnson

DOB: June 12, 1960

Community: Sipekne'katik First Nation

Original Status: Registered Indian (Status)

Case Chronology

August 5, 1980: Married Mark Johnson, a non-Indigenous man.

Effect: Under the pre-1985 Indian Act, she was involuntarily “enfranchised” and lost her status. She was informed she was no longer a band member.

1985 (Bill C-31): Applied for and was granted reinstatement of her status.

Registrar's Finding: “Mary Johnson’s status was restored under the new provisions. However, the timing of her marriage and the birth of her son are critical. Because her son was born in 1982—while her husband was non-status—he could only be registered under Section 6(2) after her reinstatement.”



David Johnson (Father)

Profile Section

Name: David Johnson

DOB: March 10, 1982

Parentage:

Mother: Mary Johnson (Status post-1985 reinstatement)

Father: Mark Johnson (Non-Status)

Status Determination

Classification: Registered under Section 6(2) of the Indian Act.

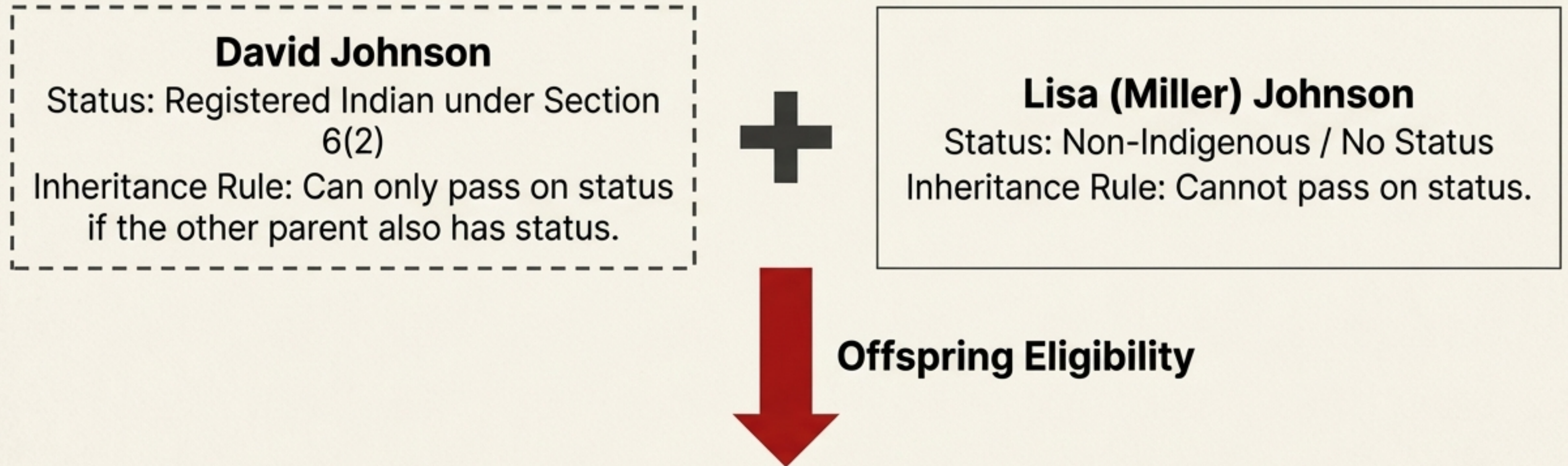
Reasoning: His eligibility for status comes from only one parent (Mary).

His other parent (Mark) is not entitled to be registered. This is the exact definition of a 6(2) registration.

Registrar's Note

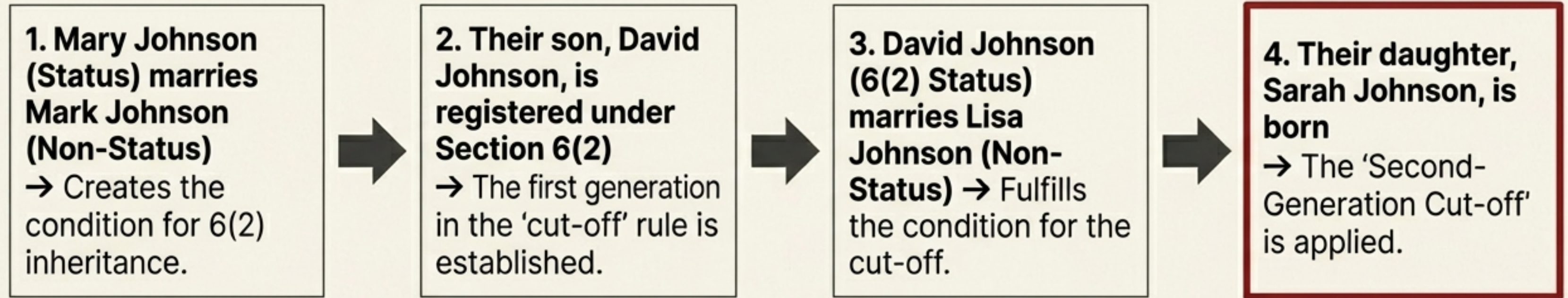
"The subject's 6(2) status limits his ability to pass status to the next generation. For his child to be eligible for registration, the child's other parent must also be entitled to be registered under the Indian Act."

The Final Generational Link: Marriage of David Johnson and Lisa Johnson



The union of a Section 6(2) status individual with a non-status individual invokes the “Second-Generation Cut-off” provision for any children.

Summary of Findings: The Statutory Basis for Denial



The denial of Sarah Johnson's application for registration is a direct and automatic consequence of the Indian Act's 'Second-Generation Cut-off' rule. The family's history demonstrates a textbook application of Sections 6(1) (f) and 6(2), where status is extinguished after two consecutive generations have children with non-status partners.

The file is closed.